CONFIDENTIALITY AND NON-DISCLOSURE AGREEMENT

Promozione Branding Private Limited
Vardhman Plaza, Sector 3, Rohini Delhi - 110085

Date :

This Confidentiality and Non-Disclosure Agreement is entered into on …….. by and between Promozione Branding Private Limited, a company incorporated under the laws of India, having its registered office at Unit No.356, Vardhman Grand Plaza, Rohini, New Delhi 110085 (hereinafter referred to as "Company"), and ……., an individual with an address at ……. (hereinafter referred to as "Employee").

1. PURPOSE

The Company is engaged in the business of digital marketing and branding, and in connection with the Employee's employment with the Company, the Employee will have access to confidential and proprietary information of the Company. This Agreement is intended to protect the confidentiality and secrecy of such information.

2. CONFIDENTIAL INFORMATION

For the purposes of this Agreement, "Confidential Information" means all information, whether written or oral, that is disclosed by the Company to the Employee, including but not limited to:

- Business strategies, plans, and operations
- Customer lists, contact information, and other customer-related data
- Marketing strategies, campaigns, and materials
- Financial information, including but not limited to revenue, profits, and expenses
- Trade secrets, know-how, and other proprietary information
- Any other information that is marked as confidential or that a reasonable person would understand to be confidential
- Any information derived from or related to the above that is not publicly available

3. OBLIGATIONS

The Employee agrees to:

- Keep all Confidential Information confidential and not disclose it to anyone, except as authorized by the Company in writing.
- Use the Confidential Information only for the purpose of performing their duties as an employee of the Company.

- Take all reasonable steps to protect the confidentiality and secrecy of the Confidential Information, including but not limited to:
  1. Keeping all documents and materials containing Confidential Information in a secure location
  2. Not copying or reproducing any Confidential Information without the prior written consent of the Company
  3. Not using any Confidential Information for personal gain or benefit
  4. Not disclosing Confidential Information to any third parties, including family members, without prior written consent from the Company
  5. Immediately reporting any unauthorized disclosure or breach of confidentiality to the Company.

- Return all Confidential Information, including but not limited to documents, materials, and electronic files, to the Company upon request or upon termination of employment.
- Certify in writing that all Confidential Information has been returned or destroyed upon termination of employment.

4. EXCLUSIONS

The obligations of confidentiality and non-disclosure set forth in this Agreement shall not apply to any information that:

- Is or becomes generally available to the public through no fault of the Employee
- Was in the Employee's possession prior to the disclosure by the Company
- Is lawfully obtained from a third party who has the right to disclose such information
- Is required to be disclosed by law or by a court of competent jurisdiction
- Is independently developed by the Employee without the use of or reference to the Company's Confidential Information

5. TERM AND TERMINATION

This Agreement shall be effective from the Effective Date and shall continue in effect for as long as the Employee is employed by the Company and for a period of ……. years after the termination of employment. Upon termination of employment, the Employee shall return all Confidential Information to the Company and shall destroy all copies thereof. The confidentiality obligations shall survive the termination of this Agreement.

6. REMEDIES

The Company shall be entitled to seek injunctive relief and/or damages for any breach of this Agreement by the Employee. The Employee agrees that the Company's remedies at law may be inadequate and that the Company may be entitled to specific performance or other equitable relief. The Employee acknowledges that any breach of this Agreement may cause irreparable harm to the Company.

7. GOVERNING LAW

This Agreement shall be governed by and construed in accordance with the laws of India. Any disputes arising out of or in connection with this Agreement shall be resolved through arbitration in accordance with the Arbitration and Conciliation Act, 1996.

8. ENTIRE AGREEMENT

This Agreement constitutes the entire agreement between the parties and supersedes all prior agreements, understandings, and discussions.

9. AMENDMENTS

This Agreement may not be amended or modified except in writing signed by both parties.

10. BINDING EFFECT

This Agreement shall be binding upon and inure to the benefit of the parties and their respective successors, assigns, and heirs.

11. SEVERABILITY

If any provision of this Agreement is found to be invalid or unenforceable, the remaining provisions shall continue in full force and effect.

12. WAIVER

No waiver of any breach of this Agreement shall be deemed a waiver of any subsequent breach or of any other provision of this Agreement. By signing below, the Employee acknowledges that they have read, understood, and agree to be bound by the terms and conditions of this Agreement.

The Employee agrees not to establish or operate any business or company within the same industry as the Employer for a period of one (1) year following the termination of their employment. After the completion of this one-year period, the Employee is free to pursue their own business interests within the industry.

EMPLOYEE'S SIGNATURE

Signature: _____
Date: _____

COMPANY'S SIGNATURE

Signature: _____
Date: _____